WALLAPOP PRIVACY POLICY

Last review: 27 December 2024

Wallapop is committed to respecting the privacy of users and the protection and security of your personal data. Therefore, it is very important for us to inform you about the way we collect, treat and protect the personal data provided to us through our website, social networks and application.

The use of the Wallapop website and app is not intended for children under the age of 14 and, therefore, they should refrain from providing any personal information. In this regard, Wallapop recommends the use of its website and its application to persons over 18 years of age. To this end, Wallapop reserves the right to check the age of users of its website and its application at any time.

Therefore, it is important to inform that Wallapop complies with the data protection regulations of the countries in which we operate, these are Spain, Italy and Portugal, as well as with the European Data Protection Regulation. Because of this, there may be specific amendments referred to in this privacy policy that apply only to users in the countries referred to above and, in some cases, different rules may be established due to applicable local legislation. In the event of a conflict, the specific amendment will prevail.

Who is responsible for the processing of personal data?

The processing of data is carried out by and on behalf of Wallapop S.L. (hereinafter, “Wallapop”), which collected your data, with registered office at Avenida Meridiana 89, 6th floor, C.P. 08026, Barcelona (Spain), with tax identification number B-66049057.

Please note that when through our website or application you make a comment on social networks, the person responsible for the Data you provide through them will be the corresponding social network and not Wallapop, and you must contact said social network to exercise, where appropriate, your data protection rights, which you can consult in the section “What are your personal data protection rights” of this Privacy Policy.

When and how do we collect your personal data?

Wallapop collects and processes personal data both from users who have registered on our website and on our application, as well as users who, without having registered, browse or consult them.

Wallapop obtains and uses the IP data and other identifiers provided by the device from which you browse our website or application, as well as the Data you provide when registering as a Wallapop “User”, alongside the Data obtained as a result of your browsing, requests, publications, conversations, searches, purchases, ratings from other users, participation in competitions and the Data derived, where appropriate, from the linking of your registration on our website or application with your Facebook or Google account.

Wallapop may also collect personal data through the use of cookies and other tracking technologies, as described in the Cookie Policy accessible through the following link.

Additionally, if you give us your consent, Wallapop will also process the location of your device to inform you of the items that are closest to you, thus allowing you to enjoy our services in a complete way.

What kind of personal data do we collect?

The categories of Data we collect depend on your activity and interaction with Wallapop through the website, app and social media. Also, Wallapop will only collect personal data that is necessary for the purposes we carry out. For this reason, it is important that we explain how and what kind of data we collect:

- **Categories of data: Basic data**

the Wallapop website and applications for informational purposes only – Information relating to your use of the website)

- **Collected data:**In accordance with the choice of cookies provided (if and when applicable), when you use our Platform for informational purposes only (e.g., you do not register on the Platform, shop through the Platform or otherwise submit your data), your Internet browser automatically collects, and transfers to us, certain basic information related to your use of the Platform. Such registration data may include the type and version of your browser, your operating system and interface, the device being used, language preference, the website from which you are visiting us (referring URL), the page(s) you visit on our Platforms, the date and time of your visit, part of your Internet Protocol address (IP), your actions taken on the Platforms, and the name of your access provider.
- Please also note that certain features of our website and app use location-based browsing in order to provide you with the most relevant information in each case, as well as to offer you certain services. Although location-based browsing is always a user's choice, in cases where you reject location-based browsing, the Wallapop website and/or application will not be able to offer you location-based functionalities or provide you with location-based content.

- **Categories of data: Social network data**(Information collected when you use Wallapop's social media for informational purposes only – Information processed by third-party social media providers)
- **Collected data:**The very use of our Platforms does not generally involve data processing activities (including data transfers) in connection with third party media platforms and/or social networks (such as Facebook and Instagram, "**External Platforms**"). However, if you accept the provided targeting cookie (if and when applicable) or if you use the sharing buttons that allow you to share Wallapop content with your friends through these External Platforms, the External Platforms may (subject to their own legal basis) collect and otherwise process personal data about you for the purpose of providing you with personalized advertising. For more information on the scope and purposes of the data processed by the External Platform provider, including your rights and settings options to protect your privacy, please refer to the privacy notice of the respective External Platform provider.

us through application forms. Also when you apply for a job offer.

- **Categories of data:Basic data and economic transaction data.** (Information collected to comply with the DAC7 Directive on fiscal data reporting.
- **Collected data**: name, surname, first name, ID number, passport, VAT information, postal address, date and place of birth, bank card details, bank account details, country of residence.

For what purposes, legitimate basis and conservation do we process your personal data?

In the event that you have not registered on our website and/or in our application, Wallapop will process the IP of your device for the following purposes:

- **BASIS OF LEGITIMACY:**Legitimate interest to improve our commercial offer.
- **PURPOSE:**Identify the origin of the download of our application in order to improve the commercial offer.
- **STORAGE PERIOD:**Only at the time of such downloading shall it be carried out.

- **BASIS OF LEGITIMACY:** Express consent by accepting the cookies policy.
- **PURPOSE:** Access your location while browsing our website or using our application to show you the products nearest you.
- **STORAGE PERIOD:** Wallapop will treat and keep the location of your device for the purposes indicated previously, as long as you do not disable the geolocation of your device.

In the event that you have registered on our website and/or in our application, the purposes for which we will treat your Personal Data are:

- **BASIS OF LEGITIMACY:** The basis of legitimacy that enables Wallapop to process your data for the present purpose is your registration request and with it your consent.
- **PURPOSE:** Manage your registration and user preferences within the registered user area, as well as to provide you with our website and/or

- **BASIS OF LEGITIMACY:** The legitimate basis for such processing is Wallapop's compliance with certain legal obligations, as well as the legitimate interest in protecting our services and products.
- **PURPOSE:** To ensure the proper use of our services and products, preventing unlawful use or contrary use of our policies and values, and possibly unsubscribing you as a registered user.
- **STORAGE PERIOD:** The data collected to manage your user preferences will be retained as long as you do not object to such processing.

- **BASIS OF LEGITIMACY:** Legitimate interest in improving our commercial offer.
- **PURPOSE:** To show you adverts tailored to your consumption and browsing habits obtained from the use of our application or website
- **STORAGE PERIOD:** Data collected and processed to ensure the proper use of our services and products will be retained until the corresponding verification action has been carried out.

- **BASIS OF LEGITIMACY:** Wallapop will carry out such treatment in attention to the relationship maintained with you, taking into account that such communications will always be about our products and services.
- **PURPOSE:** To send you, by any means, including electronic means, commercial communications in relation to the products and services offered by Wallapop, communications that may be addressed to you based on your consumption, browsing or use habits of our Website and/or Application.
- **STORAGE PERIOD:** The data collected to show you targeted advertising will be used as long as you do not object to such processing.

- **BASIS OF LEGITIMACY:** Express consent to participate in the contests we promote
- **PURPOSE:** Manage your participation in the contests we organize in accordance with our legal bases
- **STORAGE PERIOD:** The data collected to send you commercial communications about our own services will be kept until you unsubscribe as a registered user or object to such processing.

- **PURPOSE:** To collect and analyze the content of the chats in which you interact with other users, in order to verify you are making lawful use of our services.
- **STORAGE PERIOD:** The storage period for this processing is 5 years.

- **BASIS OF LEGITIMACY:** Wallapop carries out such processing as a consequence of your acceptance of the general terms and conditions of the contract made at the time of requesting the delivery service of the item or services requested.
- **PURPOSE:** To monitor delivery of the items and/or services purchased through our website and/or application.
- **STORAGE PERIOD:** Those data collected to carry out the services will be kept as long as you do not unsubscribe as a registered user and do not oppose such treatment.

- **BASIS OF LEGITIMACY:** The legitimate basis for carrying out this processing is the acceptance by you of our general terms and conditions at the time of contracting this service.
- **PURPOSE:** To manage and control subscriptions or payment for positioning or visibility.
- **STORAGE PERIOD:** The data obtained as a result of your contracting our services will be retained until the civil liability arising from said service expires.

- **BASIS OF LEGITIMACY:** the legitimate basis for this treatment being the legal obligation of Wallapop in accordance with the regulations for the protection of consumers and users.
- **PURPOSE:** To manage complaints and queries about the items and/or services purchased through our website and/or application.
- **STORAGE PERIOD:** Those data obtained as a result of complaints or queries that you may direct to us will be kept until the corresponding complaint or query has been resolved, or for a period of 5 years to ensure its reliability.

- **BASIS OF LEGITIMACY:** This processing will only be carried out if you give us your consent to do so.
- **PURPOSE:** If you have given us your express consent to this effect, we will communicate your data to third party companies outside of Wallapop in

habits that we may have obtained from third parties will be kept as long as you do not revoke the given consent.

- **BASIS OF LEGITIMACY:**Notification of income and tax data by legal obligation.
- **PURPOSE:**In the event that you reach a certain amount of revenue or sales we are required to collect and report such revenue and tax data under the DAC7 Directive.
- **STORAGE PERIOD:**The data will be kept for a period not exceeding 10 years in accordance with the Directive.

In general, when you unsubscribe as a registered user of Wallapop, all the information about you will be deleted. However, Wallapop will keep purely statistical data on the use of its resources and tools by users.

In case you want to report any communication or possible irregularity through the Ethical Channel, the information about the treatment of your data in the framework of the Channel is available in the Privacy Policy in the following link.

With whom do we share your personal data?

In order to fulfill the purposes indicated in this privacy policy, it is necessary for us to provide access to your personal data and to third parties that support us in the services we offer you, among which are: financial entities, tax and fraud prevention entities, government agencies, technology service providers, transport and logistics service providers and partners, marketing and advertising companies, and customer service and complaint or claim management companies.

In this regard, we only select service providers that offer adequate guarantees through internal processes defined by both Wallapop's legal and privacy departments, guaranteeing at all times the transparency and privacy of your personal data.

limited liability company incorporated under Luxembourg law with its registered office at 2, Avenue Amélie, L-1125 Luxembourg and registered with the Luxembourg Register of Commerce and Companies under number B173459 ("**Mangopay**"), as detailed in our Terms and Conditions. You can find more information about the data processing carried out by Mangopay here.

Under no circumstances does Wallapop share user data with third party companies, inside or outside the European Union, for purposes other than the provision of the service without your explicit consent and without having complied with the right of information.

Only when you provide us with your express consent through our consent management platform, we will share some personal data with Partners (such as Google Ireland Limited, Amazon Ad Server, Magnite, Inc or LiveRamp France) with the strict purpose of ads targeting and delivery. You can check the full list of Partners and gather further information about the processing of your personal data in the Partners' own privacy policies linked in our consent management platform accessible through the following link.

In addition to the above, you should be aware that, whether you are a Professional User or a Consumer User, certain identification and contact data may be accessible and visible to other Users in specific situations of use of the platform (for example, if you open a chat with a potential seller, he/she may see your username or if you close a sale through the platform using the Wallapop shipping service, the seller may have access to your name and address in order to carry out the shipping).

For reasons of availability or efficiency of the service, some of our suppliers are located in territories outside the European Economic Area that cannot provide a level of data protection comparable to that of the European Union, such as the United States. In such cases, we inform you that we transfer your data with appropriate safeguards and always keep your data secure:

- The providers are certified in the Data Privacy Framework Program, certification that you can consult in the following link: https://www.dataprivacyframework.gov/s/
- With other suppliers we have signed Standard Contractual Clauses approved by the Commission, the content of which can be consulted at

- Security questionnaires and verification of technical and organizational measures implemented by the company.

Know your data protection rights.

You may exercise your rights of access, rectification, deletion, opposition, limitation to the processing and portability of your data, as well as the revocation, at any time, of the consents, if any, provided to Wallapop, S.L., with address at Avenida Meridiana 89, 6th floor, C.P. 08026, Barcelona (Spain), with NIF B-66049057. For your convenience, and without prejudice to certain formal requirements established by Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of individuals with regard to the processing of personal data and on the free movement of such data (RGPD), Wallapop, S.L. offers you the possibility of exercising the aforementioned rights via email: privacidad@wallapop.com.

Likewise, we remind you of the possibility of making a complaint to the Spanish Data Protection Agency, especially when you consider that Wallapop has not duly satisfied the exercise of your rights. This claim may be submitted to the aforementioned authority through the different options that the electronic headquarters of the Spanish Data Protection Agency offers (https://www.aepd.es/reglamento/derechos/index.html).

If you wish to exercise your data protection rights with respect to Mangopay, our payment services provider linked to the Wallet, please send an email to dpo.mangopay@mangopay.com directly requesting the specific data protection right you wish to exercise.

How to contact Wallapop for privacy requests

For any questions or comments regarding this Privacy Policy or how Wallapop collects and uses your Data, you may also contact our office, and email: privacidad@wallapop.com.

Data Protection Officer's contact details

Changes to the Privacy Policy

We may change the information contained in this Privacy Policy from time to time. If we do so, we will notify you in various ways through the App (for example, through a banner, a pop-up or a push notification), or we will even notify you at your email address when the change in question is significant to your privacy, so that you can review the changes, assess them and, if appropriate, object or unsubscribe to any service or functionality.

In any case, we suggest that you review this Privacy Policy from time to time in case there are minor changes or we introduce any interactive improvements, taking advantage of the fact that you will always find it as a permanent point of information on our Web and our App.

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